

In The Matter Of:
TARA KATELYN WALSH vs.
STEPHEN GRANT RUSSELL

B E F O R E: HON. ARLENE GORDON-OLIVER
November 29, 2018

La Palabra Court Reporting LLC
175 Main Street
Suite 18, 7th floor
White Plains, NY 10601

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Min-U-Script® with Word Index

STATE OF NEW YORK
COUNTY OF WESTCHESTER: FAMILY COURT

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TARA KATELYN WALSH,

Petitioner,

- vs -

Family Unit: 154703
Docket Nos.:
O-06917-18/18A
O-06917-18/18C
V-07641-18

STEPHEN GRANT RUSSELL,

Respondent.

-----X

111 Martin Luther King Blvd.
White Plains, New York 10601
November 29, 2018

B E F O R E: HON. ARLENE GORDON-OLIVER

A P P E A R A N C E S:

LISA S. ANTONCIC, ESQ., Attorney for Petitioner
JASON ANDREW ADVOCATE, ESQ., Attorney for Respondent
TARA K. WALSH, Petitioner
STEPHEN G. RUSSELL, Respondent (Via Telephone)

Electronic Proceeding Transcribed By:
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E X A M I N A T I O N S

NO WITNESSES OR EXHIBITS
PETITIONER

			Re	Re
Witness	Direct	Cross	Direct	Cross

RESPONDENT

			Re	Re
Witness	Direct	Cross	Direct	Cross

E X H I B I T S

PETITIONER

Exhibit No.	Description	ID	Evidence
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RESPONDENT

Exhibit No.	Description	ID	Evidence
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1 [Audio CD, counter 10:45:03]

2 COURT OFFICER: Your Honor, this is cases six
3 through nine today's calendar in the matters of Walsh and
4 Russell, Family Unit Number 154703.

5 Counsel, your appearances for the record.

6 MS. ANTONCIC: Lisa Antoncic, Eight Madison
7 Avenue, Second Floor, Valhalla, New York, for the
8 Petitioner, Tara Walsh. Good morning, Your Honor.

9 THE COURT: Good morning.

10 MR. ADVOCATE: Jason Advocate, for Katherine
11 Chesnut, Advocate, LLC, 1540 Broadway, New York, New York,
12 for the Respondent, Stephen Walsh -- no, Russell, Russell.

13 MS. JACKMAN: Good morning, Your Honor. Jennifer
14 Jackman, attorney assigned to represent Evelyn Walsh.

15 THE COURT: Okay, thank you.

16 Alright, so I asked for an attorneys' conference.
17 I just need to wrap my arms around where we are. I
18 received papers today, but this matter was on for today for
19 the Order to Show Cause and I have the cross-motion.

20 MS. ANTONCIC: Yes, Your Honor.

21 THE COURT: And I think the request that all
22 papers be filed by the 26th and the replies.

23 MS. ANTONCIC: Well, Your Honor, I had filed my
24 cross-motion and Opposition on November 15. And then
25 according to the scheduling Order, Mr. Advocate was to file

1 a reply to his Order to Show Cause by Monday, which I
2 received on Monday, but that didn't allow for time for a
3 response to my -- for a reply to my --

4 MR. ADVOCATE: Your Honor?

5 MS. ANTONCIC: Can I just finish please?

6 MR. ADVOCATE: Yes?

7 MS. ANTONCIC: -- a reply to my cross-motion. My
8 cross-motion actually asked for Opposition papers seven
9 days prior to the return date. I didn't get them seven
10 days prior, so, you know, we rushed to prepare it. And
11 quite frankly, his Opposition to my cross-motion is
12 untimely.

13 THE COURT: Alright, no, I mean --

14 MR. ADVOCATE: But I'm not going to object to her
15 papers being late, Your Honor.

16 THE COURT: One second. And I'm not going to --
17 the reason for my question is not to say papers are
18 untimely.

19 MS. ANTONCIC: Okay.

20 THE COURT: I got everything. I just want to
21 know if everything is submitted now because I'm losing
22 track of (inaudible) because, no, you have a cross-motion.

23 MS. ANTONCIC: Yes, Your Honor.

24 THE COURT: So, therefore, Mr. Advocate, you need
25 to respond to the cross-motion.

1 MS. ANTONCIC: He did, Your Honor.

2 THE COURT: You did?

3 MR. ADVOCATE: We did.

4 THE COURT: When?

5 MR. ADVOCATE: I think everything's responded to
6 now.

7 THE COURT: Wait, wait, so that's why I'm trying
8 to figure out what I have here now.

9 MS. ANTONCIC: But on Monday, Mr. Advocate
10 submitted Opposition to my cross-motion as well as a Reply
11 to his Order to Show Cause and to the --

12 THE COURT: I don't have it.

13 MR. ADVOCATE: You don't have it?

14 THE COURT: You filed it?

15 MR. ADVOCATE: We overnighted it by FedEx.

16 THE COURT: By FedEx -- and you filed it, Mr.
17 Advocate?

18 MR. ADVOCATE: Yeah, we gave it to a service to
19 file. I can -- I'll --

20 THE COURT: Alright, one second, let me just see.
21 This is why I brought you in because I don't know if I have
22 everything.

23 (Pause)

24 MR. ADVOCATE: I have an extra copy here if you
25 need it, Your Honor.

1 THE COURT: (Inaudible). Let me see. I have Ms.
2 Jackman's. I have the cross-motion. Are you sure it was
3 filed? He filed it on Monday? You filed it then?

4 MR. ADVOCATE: When did we file it?

5 MS. ANTONCIC: No, Your Honor, I believe it was
6 filed on Tuesday.

7 THE COURT: Tuesday? So, just -- I don't know
8 where we look it up from. No, don't look at that copy,
9 just check to see if it's in USCM -- USCM file.

10 MR. ADVOCATE: Judge, if you need to, I can bring
11 that downstairs and (inaudible).

12 THE COURT: Well, that's what I was going to --
13 if we don't see it here that means that whatever service
14 you hired to do it might not have done it.

15 MR. ADVOCATE: Okay. Sometimes they --

16 THE COURT: Can you do it by date to see if
17 anything was filed Monday or Tuesday?

18 COURT CLERK: (Inaudible).

19 THE COURT: No, I have that.

20 COURT CLERK: (Inaudible).

21 THE COURT: No.

22 COURT CLERK: (Inaudible).

23 THE COURT: Okay, fine. So, Mr. Advocate --

24 MR. ADVOCATE: Yeah, I'll bring that downstairs
25 and then I'll file it.

1 THE COURT: Bring down this downstairs and then
2 you're going to need to supply (inaudible) set. You don't
3 have another set?

4 MR. ADVOCATE: Not on me. I'll FedEx a copy up
5 to you tomorrow -- today actually. You'll get it tomorrow.

6 THE COURT: Okay, that's why I -- I mean just so
7 that we're -- where everything was and what paperwork I
8 still needed to get from the attorneys.

9 Okay, so everything's fully submitted now?

10 MS. ANTONCIC: Yes, Your Honor. Just
11 administratively --

12 THE COURT: Yes.

13 MS. ANTONCIC: I just wanted to ask; the Order
14 appointing Dr. Griffin has not yet been signed, so Ms.
15 Jackman kindly gave me her copy. If I could have that for
16 the Court's -- it was filed with Notice of Settlement
17 November 15 and it was filed on November 5.

18 THE COURT: Notice of Settlement -- so the
19 settlement date was the 15th?

20 MS. ANTONCIC: Yes, Your Honor.

21 THE COURT: No objections, so I could go ahead
22 and have that entered?

23 MS. ANTONCIC: Yes, it was on consent, Your
24 Honor.

25 THE COURT: Okay, alright.

1 MR. ADVOCATE: Which one was it?

2 MS. ANTONCIC: The Griffin Order.

3 MR. ADVOCATE: Oh, yeah, okay.

4 THE COURT: Okay, fine. So, is that the copy
5 that I could sign?

6 MS. ANTONCIC: Yes, Your Honor. I can hand that
7 up.

8 THE COURT: Please.

9 (Handing document to the Court)

10 MS. JACKMAN: And just for administrative
11 purposes, we had agreed on private pay for myself in this
12 case. I did submit an Order to the parties to sign on off
13 on. I don't think that I got that back. So, if I could
14 just give you a copy, you can sign that, and then I can
15 hand it up to the Court today.

16 THE COURT: Right. Because I think I already
17 approved that.

18 MS. JACKMAN: Yes.

19 MS. ANTONCIC: Yes.

20 MS. JACKMAN: On consent.

21 THE COURT: Right. Okay. And this is the --
22 okay, you're going to hand that up also.

23 (Handing document to the Court)

24 MR. ADVOCATE: Your Honor?

25 THE COURT: Yes?

1 MR. ADVOCATE: Would it be possible, with respect
2 to this Order regarding the private pay for Ms. Jackman,
3 can you just order it. Technically, we didn't agree to the
4 100 percent on his side. The Court ordered it.

5 THE COURT: So, what is that that you have in
6 your hands now?

7 MR. ADVOCATE: This says that I'm agreeing to
8 approve just to the form and the content. It makes it
9 seems like we're agreeing to it rather than just having the
10 Court order it.

11 THE COURT: Then, fine, I'll just order it.

12 Ms. Jackman, did you hear the comment from
13 counsel?

14 MS. JACKMAN: Yes, that's fine.

15 THE COURT: Okay? So, no signatures of the
16 parties are necessary 'cause any objection I think I
17 overruled it.

18 MR. ADVOCATE: Yes, you did.

19 MS. JACKMAN: Exactly, yes, right.

20 THE COURT: So, (inaudible).

21 Alright, so what else do you have as far as
22 housekeeping 'cause I think now I have all the -- no, I
23 don't have Mr. Advocate's, but I will make a note that
24 you're going to be sending -- you have to send copies.

25 MS. ANTONCIC: The only other housekeeping

1 matter, Your Honor, is I note that Mr. Russell is not here.

2 THE COURT: He is on the phone. I only wanted an
3 attorneys' conference right now.

4 MS. ANTONCIC: No, I understand.

5 THE COURT: So, I'm going to bring the parties in
6 and get them on the phone.

7 MS. ANTONCIC: But I just wanted to put on the
8 record my objection to him appearing by phone. I did not
9 receive a copy of the telephonic request. And the reason
10 for my objection, Your Honor, is the last time we were here
11 he did not appear. He submitted a doctor's note --

12 THE COURT: Right.

13 MS. ANTONCIC: -- after the fact. And given his
14 drug test result, which the Court noted at the last
15 appearance, was quite alarming. It would've been nice if
16 he was here so that we could get a second test;
17 particularly, given that he has not taken part in any
18 visits.

19 THE COURT: Okay, so here's what we'll do. That
20 should be put on the record when he's on the phone.

21 MS. ANTONCIC: Okay, fine.

22 THE COURT: Okay, so just hold that comment.

23 MS. ANTONCIC: Okay.

24 THE COURT: He needs to hear that from you and
25 then any response from his counsel. Alright, so I think

1 the housekeeping matters are done.

2 MR. ADVOCATE: Yeah. And just one thing, is it
3 possible that we can get the drug test results from last
4 time? Can we get copies of those?

5 THE COURT: The Court doesn't normally give those
6 out. Why do you need it?

7 MR. ADVOCATE: Just that you know since there's
8 issues about it, I'd like to see what the report said.

9 THE COURT: I put it on the record what it said.

10 MR. ADVOCATE: I know. It's so much easier --

11 THE COURT: Well, this is not something that the
12 Court gives out.

13 MS. ANTONCIC: And respectfully, Your Honor, now
14 that Dr. Griffin has been appointed I'm sure that he's
15 going to issue a detailed report as to what his analysis of
16 those findings and subsequent findings will be.

17 THE COURT: Right.

18 MR. ADVOCATE: Your Honor, can I ask a question?

19 THE COURT: Sure.

20 MR. ADVOCATE: This is just -- I mean I was only
21 curious, what was the date? Did she do the testing on the
22 same date that he did?

23 THE COURT: Yes.

24 MS. ANTONCIC: Yes.

25 MR. ADVOCATE: Because it was strange because you

1 know he was there. They was shutting down the office and
2 she left the building, so I don't know if she --

3 THE COURT: No, she went downstairs.

4 MR. ADVOCATE: And then she came back up?

5 MS. ANTONCIC: Yes.

6 THE COURT: Men do it upstairs; ladies
7 downstairs.

8 MR. ADVOCATE: He didn't see her.

9 THE COURT: Do worry about that.

10 MR. ADVOCATE: I'm just curious.

11 THE COURT: Probation has them go different
12 places.

13 MR. ADVOCATE: Gotcha.

14 THE COURT: Okay, so she didn't leave. She went
15 to where she needed to go. Alright, anything else?
16 Alright, so let me get the parties in.

17 [Telephone recording]

18 MR. ADVOCATE: Your Honor, I have his number, if
19 you need it?

20 THE COURT: Okay.

21 MR. ADVOCATE: It's 415-999-3944.

22 THE COURT: Okay, that's the number we have?

23 FEMALE SPEAKER: Yeah.

24 [Telephone ringing]

25 MR. RUSSELL (Via Telephone): Hi, this is Steve

1 Russell.

2 COURT OFFICER: Counsel, please stand.

3 THE COURT: Mr. Russell --

4 [Off the record]

5 [Time noted 11:08:39 a.m.]

6 [On the record]

7 [Time noted 11:08:50 a.m.]

8 COURT OFFICER: Your Honor, this is second call
9 on cases number six through nine on today's calendar in the
10 matters of Walsh and Russell, Family Unit Number 154703.

11 Both parties please raise your right hand. Ms.
12 Walsh? Mr. Russell?

13 Ms. Walsh, do you swear or affirm to tell the
14 truth?

15 T A R A W A L S H, a witness herein, was
16 examined and testified as follows:

17 MS. WALSH: Yes, I do.

18 COURT OFFICER: For the record, state your name
19 and address, unless your address is confidential.

20 MS. WALSH: Tara Walsh, 394 Wippoorwill Road,
21 Chappaqua, New York 10514.

22 COURT OFFICER: Mr. Russell, raise your right
23 hand.

24 Do you swear or affirm to tell the truth?

25 S T E P H E N R U S S E L L, a witness herein,

1 was examined and testified as follows:

2 MR. RUSSELL (Via Telephone): I do.

3 COURT OFFICER: For the record, state your name
4 and address, unless your address is confidential.

5 MR. RUSSELL (Via Telephone): Stephen Grant
6 Russell, 301 Mission Street, Apartment 55D, San Francisco,
7 California 94105.

8 COURT OFFICER: Counsel, I'm going to remind you
9 that you're still under oath and for the record, your
10 appearance remain the same. You can be seated.

11 THE COURT: Okay, thank you parties.

12 Counsel for the Petitioner had a comment to make
13 regarding Mr. Russell's appearance by telephone today and
14 then Mr. Advocate I'll give you an opportunity to respond.
15 Go ahead, counsel.

16 MS. ANTONCIC: Thank you, Your Honor. I object
17 to Mr. Russell appearing by phone today on behalf of my
18 client. As the Court will recall at the last court
19 appearance, he did not appear due to an illness and he is
20 not here again today.

21 The last time he did appear he was -- the Court
22 directed him to do a random drug test, which, as the Court
23 was well aware, he tested positive to a number of different
24 substances and his presence -- or his absence rather today
25 is suspect in light of the drug test and suggested that

1 he's trying to avoid a drug test.

2 So, I would object to him having the benefit of
3 appearing by telephone; particularly, given I did not get
4 notice and given the drug test that -- which had very
5 disturbing results.

6 THE COURT: Yes, Mr. Advocate?

7 MR. ADVOCATE: Your Honor, the drug test did not
8 have very disturbing results. The reality is that it turned
9 up certain substances for which he had prescriptions. The
10 reason that there was a drug test in the first place was
11 because of allegations by the Petitioner that my client
12 used cocaine. There was no cocaine found in the drug test
13 and I think that puts to lie the notion that he has a drug
14 problem, and we presented to the Court all of the
15 prescriptions that he.

16 That is not why he wants to appear by telephone.
17 He wants to appear by telephone because he is 3,000 miles
18 away and coming back forth for a court appearance is
19 extremely disruptive, so this is a rather typical request
20 that's made in cases. And we should remember a little bit
21 that we're here in the first place because there was an
22 existing California action in which the Petitioner took the
23 child, ran to New York, and started a case here and now
24 she's trying to force him to come here.

25 It seems like the reason that she wants him here

1 is to be much more coercive. If the issue is one of simply
2 we need to do further drug testing, we can find a court-
3 approved center in California that he can go to and get a
4 drug test and she can do the same here or the next time
5 he's here, if Your Honor is going to require a New York
6 facility, we could have him come and appear by -- you know
7 appear for the purposes of a drug test.

8 THE COURT: Okay. I think what counsel's saying
9 is that the non-appearance, albeit, approved by the Court,
10 doesn't lend itself to a random drug test that I could
11 order today on both parties without them knowing that
12 that's going to happen. But in any event, I think -- go
13 ahead, Ms. Jackman.

14 MS. JACKMAN: I'm also concerned that Mr. Russell
15 isn't here, but more so because since I've been on this
16 case I think -- you know back in August Mr. Russell
17 indicated that he would set up residence here and he would
18 be here to visit with the child. And so even if he does
19 not intend to set up a residence here any more it seems
20 that you know coming to New York to appear for the court
21 dates would at least give him an opportunity to see the
22 child and he hasn't seen the child in months now.

23 THE COURT: Okay, so Ms. Jackman, that's
24 something else that you're raising that I was going to get
25 to as far as how the visits were going. Is there any other

1 issue regarding the non-appearance now?

2 MS. JACKMAN: No, Your Honor.

3 THE COURT: No? Okay, fine. Alright, so Mr.
4 Advocate, what I'll tell -- Mr. Russell you have a lot of
5 advance notice of these hearings, sir. And I know that you
6 originally filed your case in California, but if you
7 recall, it was both myself and California judge that
8 determined that New York was going to be the jurisdiction
9 for these proceedings. And, therefore, I don't think you
10 can say, Mr. Advocate that your client's been forced to
11 come here. It was two judges who got together and
12 determined where this was going to happen.

13 Yes, Petitioner did file, but we made an ultimate
14 decision (inaudible) on where this was going to take place,
15 so no blame can be laid at the Petitioner's feet. Okay.

16 So, let's move on. How are the visits going?

17 MS. ANTONCIC: Your Honor, there hasn't been one
18 visit since the last court appearance. After the last
19 court appearance where the Court ordered that my client not
20 be present, even for the transition --

21 THE COURT: Yes.

22 MS. ANTONCIC: -- portion of it, Mr. Russell sent
23 a scathing email to Ms. Walsh. A harsh email which is
24 attached to our cross-motion, basically, threatening to
25 report her to a professional review board, demanding a

1 refund, and saying that he will not submit to visits
2 because -- and that, quite frankly, is the basis for our
3 cross-motion for counsel fees on the motion because at that
4 point when Mr. Russell knew that he wasn't going to submit
5 to any supervised visits his request for unsupervised
6 access became frivolous because the Court has made it
7 abundantly clear that it would not consider unsupervised
8 access until the Court had a mutual report by which to
9 evaluate whether or not that was even possible.

10 THE COURT: Alright, stop for second.

11 Mr. Advocate, what is your client doing?

12 MR. ADVOCATE: After the last court date, we read
13 him the report from Delia (ph) and he was very disappointed
14 in the report. I will say that he feels very surprised by
15 it and very hurt by what she put in the report and the
16 attacks that he feels she made on him. At this point --

17 THE COURT: You mean the report --

18 MR. ADVOCATE: The report that Delia (inaudible).

19 THE COURT: One report.

20 MR. ADVOCATE: Right, the one report.

21 THE COURT: What were the attacks?

22 MR. ADVOCATE: Essentially, you know the -- Delia
23 said that the whole family history out of --

24 THE COURT: Okay, but what were the attacks? You
25 mean because of the allegations that the Petitioner had

1 made that she put in the report?

2 MR. ADVOCATE: He felt that the description of
3 what occurred was not all accurate.

4 THE COURT: No, no, description -- go ahead,
5 please.

6 MR. ADVOCATE: Oh, the child you know not doing
7 well with him. And you know there were a lot -- even in
8 minutia in that report that he felt were constant
9 (inaudible).

10 THE COURT: Tell me which part of it. Mr.
11 Russell is on the phone. You want to tell me which part of
12 it because I read the report and I didn't see any attacks.
13 I only saw a report of -- and if he felt that the report
14 didn't accurately reflect what transpired, then the proper
15 way to have dealt with it was for him to report that to you
16 and for us to deal with it here and have Ms. Farkinson (ph)
17 here on the record as opposed to writing her a letter that
18 -- I haven't looked at it yet. I don't know what it says.

19 MR. ADVOCATE: I'll tell you the more pressing
20 issue that he had was there's no parallel here. That he
21 does not see any reason why the mother, who has her issues,
22 is being supervised by her mother and occasionally there
23 are nannies in the house watching the child.

24 THE COURT: Stop. Mr. Advocate, you're not
25 dealing with the issue that I'm dealing with. Your client

1 and whatever he wrote to Ms. Farkinson and the detail --
2 what were the attacks. What were the attacks?

3 (Everyone speaking at the same time)

4 THE COURT: Let me tell you the reason why I'm
5 raising it is because one of the things I intended to do
6 when I realized that the parties somehow hadn't -- the
7 Order that I entered wasn't followed I actually toyed with
8 the idea of sus sponte having another person supervise and
9 I asked on the record whether or not that was what you were
10 looking to do and I was told no.

11 So, for me to hear that your client went ahead
12 after the hearing and did something -- I assume this was
13 like unwarranted because I want to be the person who deals
14 with issues with any professionals that I order to do
15 anything in this Court, not the litigants.

16 MR. ADVOCATE: Let me address that for one
17 second. Your Honor did say that on the record. And I will
18 say that I made a record. We should've done that. We
19 should've taken you up on that. It was not a wise move on
20 my side not to have done that. I should've listened to you
21 and I think my client feels that he should have listened as
22 well. He's seen the transcript and --

23 THE COURT: He should've listened to?

24 MR. ADVOCATE: You on that one.

25 THE COURT: Yeah, so why write the letter? Why

1 do that?

2 MR. ADVOCATE: I will address -- you asked me a
3 direct question about some of the -- about some what he
4 perceived as attacks in the report. I'll give you one
5 example, for instance, on page 3 Ms. Farkinson wrote "As we
6 got closer to the home the Respondent" -- she was walking
7 up to the home.

8 THE COURT: Yes, I read that.

9 MR. ADVOCATE: Right. "As we got closer to the
10 home, the Respondent began walking towards us."

11 THE COURT: Yes.

12 MR. ADVOCATE: "This clinician observed the hands
13 of the subject child began to shake. She became upset and
14 began crying."

15 THE COURT: What's your attack? What's the
16 attack?

17 MS. JACKMAN: That's a character --

18 THE COURT: Stop, Ms. Jackman.

19 What's the attack on your client?

20 MR. ADVOCATE: That's a characterization of the
21 child shaking in fear.

22 THE COURT: What's the attack on your client?

23 MR. ADVOCATE: That is an attack.

24 THE COURT: No. She was describing what the baby
25 was doing.

1 MR. ADVOCATE: Listen, he says that didn't -- (A)
2 it didn't occur.

3 THE COURT: That's different if he's disagreeing,
4 but that's not an attack.

5 MR. ADVOCATE: Okay, maybe we're -- maybe I'm
6 mischaracterizing.

7 THE COURT: Fair. Where's that letter? I want
8 to see what he wrote to Ms. Farkinson.

9 MS. ANTONCIC: Your Honor, it's an exhibit to our
10 cross-motion. I'm happy to read it.

11 THE COURT: Go ahead.

12 MR. RUSSELL (Via Telephone): I'm sorry. I'm
13 breaking up a little bit for me. (Inaudible).

14 THE COURT: And I did not rebuke Ms. Farkinson.

15 MR. ADVOCATE: What was that again?

16 THE COURT: Exhibit N to the motion (inaudible)
17 the cross-motion.

18 Mr. Advocate, is the first time you're seeing
19 this email?

20 MR. ADVOCATE: No, no, I've seen it before, Your
21 Honor. I just haven't read it in a few weeks.

22 THE COURT: Read it.

23 MR. ADVOCATE: I am. You know, give me 30
24 seconds. Yes.

25 (Pause)

1 MR. ADVOCATE: I read it, Your Honor. Yes, I
2 think the tone may have been a little bit hard, but --

3 THE COURT: Seriously.

4 MR. ADVOCATE: The tone was maybe not
5 appropriate.

6 THE COURT: Tone? He gets up and he thinks he's
7 going to tell Ms. Farkinson that she's no longer going to
8 be paid by him and I directed it and that she's no longer
9 go to be the supervisor. Seriously? Who does your client
10 think he is?

11 MR. ADVOCATE: There is a Court Order out there
12 that he's required to pay. We're aware of that, Your
13 Honor.

14 THE COURT: Who does he think he is? I mean he's
15 on the phone.

16 Mr. Russell, who do you think you are, going in
17 on a professional who I appointed in this case? Anything
18 that needs to be done with respect to professionals I will
19 take care of that matter, sir, not you.

20 Counsel, (inaudible) conference settlement. Get
21 Mr. Russell off the phone. Please, ma'am, step out. Yeah,
22 we'll call you back, Mr. Russell.

23 Okay, we're still on the record. Anybody want to
24 go off the record? Yes? Off the record.

25 (Off the record)

1 (Time noted 11:22:45 a.m.)

2 (On the record)

3 (Time noted 11:36:29 a.m.)

4 COURT OFFICER: Mr. Russell, we're back in the
5 courtroom. We're on the record.

6 Your Honor, this is the third call on cases six
7 through nine on today's calendar in the matters of Walsh
8 and Russell, Family Unit Number 154703.

9 I want to remind everyone you're still under
10 oath. And for the record the appearances are the same.
11 Everyone can be seated.

12 THE COURT: Alright, thank you.

13 We had a conference, Mr. Russell, on the issue
14 regarding your letter to Ms. Farkinson and what we need to
15 do going forward. I won't tell you the substance of what
16 was discussed, but we have decided that the parties are
17 going to get together -- your attorneys, the attorneys here
18 to determine who the new supervisor will be in the event,
19 sir, that you determine that you will have supervised
20 visits go forward and actually, I'm ordering that. And if
21 it's your wish not to participate in supervise visits, then
22 so be it. Do it at your own peril, but I will still keep
23 my Order that there're going to be supervised visits for
24 both parties and I'll be told later, Mr. Advocate, as to
25 who you and the AFC and counsel for Petitioner agree.

1 MR. ADVOCATE: Yes.

2 THE COURT: That will be suited to do the
3 supervised visits, but that's going to continue.

4 I also discussed the application for Petitioner's
5 counsel. I'm awarding 15,000, the fees that were
6 previously requested. Now there's additional fees pending
7 and requested. At this time, I'm only doing 15,000 and
8 that's subject to Mr. Advocate said that he wanted to get a
9 copy of your bill.

10 MS. ANTONCIC: I believe he said he wanted just a
11 statement on the record, but I'm happy --

12 THE COURT: Okay.

13 MS. ANTONCIC: -- to do either or both.

14 MR. ADVOCATE: Judge, I'd like the bills as well.

15 THE COURT: Right.

16 MS. ANTONCIC: That's fine. That's fine.

17 THE COURT: The bills as well as a statement on
18 the record as far as what you're up to so far.

19 MS. ANTONCIC: Approximately, 40,000, Your Honor.
20 And if I had to estimate rough ballpark, I would say about
21 65 percent of that is related to this custody proceeding
22 and the remaining to the child support and the family
23 offense petition, which was resolved. So, I will submit
24 redacted invoices to Mr. Advocate and the Court, as well as
25 proposed Order and for the 15,000 to be payable -- I

1 believe Mr. Advocate and I discussed December 30 -- with
2 leave to --

3 THE COURT: December 30 for what?

4 MS. ANTONCIC: For the 15,000.

5 THE COURT: Okay.

6 MS. ANTONCIC: And with leave to apply for more
7 at the conclusion of the case. And of course, that's
8 separate and apart from the fees on this Order to Show
9 Cause --

10 THE COURT: Right.

11 MS. ANTONCIC: -- and our cross-motion.

12 THE COURT: Okay, alright. And you'll submit an
13 Order to me on the new supervisor?

14 MR. ADVOCATE: Yes.

15 THE COURT: Okay.

16 MR. ADVOCATE: Judge, because my client -- sorry.

17 THE COURT: Okay, that's three or four months of
18 -- the fact-finding. The forensics we'll do, but -- yes.
19 Okay, Mr. Advocate?

20 MR. ADVOCATE: Judge, I just want to -- because
21 my client's not here and some of this was off the record, I
22 just want to make it clear for him then.

23 I did argue with the Court that we believe that
24 most appropriate thing to do would be to let go of the
25 supervisor completely and let him be supervised in the same

1 manner as the wife is -- I should say the mother, Ms.
2 Walsh -- with respect to having her parents or a nanny
3 babysit. We discussed that for (inaudible) and you said
4 that you're not going to do that. That you want to
5 continue with supervision, but we'd get a new supervisor on
6 the case.

7 So, I just want to make it clear to him that we
8 fully discussed the issue and we had substantial argument
9 about it.

10 THE COURT: Right. And I can tell you something,
11 Mr. Russell; I have misgivings, sir, about your ability to
12 conduct yourself in an appropriate manner. That letter to
13 Ms. Farkinson that was just absolutely, absolutely
14 inappropriate and I already told your attorney off the
15 record what I really felt, okay, but on the record I'm
16 telling you it was really inappropriate for you to do that.

17 If you have any issues, you are to discuss it
18 with your attorney. Your attorney will bring them to the
19 Court's attention or maybe your attorney will discuss it
20 with other counsel and a letter to Ms. Farkinson would go
21 out, but for you to have done that on your own without
22 advising your attorney prior to -- as you did, after that
23 is inappropriate and please don't try that again in my
24 Court, sir. I'm warning you. Do not try that again to
25 circumvent any of my Orders, to approach any professional

1 that I've appointed in such a manner.

2 Mr. Russell, do you hear me?

3 MR. RUSSELL (Via Telephone): I do hear you. The
4 instruction not to communicate with anyone you appoint or
5 not to -- what, more specifically, not write letters of
6 this tone. What is the specific order?

7 THE COURT: Sir, the only thing that you're
8 allowed to do -- if I set up a supervisor, the only thing
9 you're allowed to do is to arrange for when the supervisor
10 is going to be with you and the subject child and that's
11 the extent of the communication, okay, just dealing with
12 issues regarding timing, days, whatever else, nothing else.
13 And especially not --

14 MR. RUSSELL (Via Telephone): Including payment.

15 THE COURT: You can deal with that with your
16 attorney.

17 MR. RUSSELL (Via Telephone): (Inaudible).

18 THE COURT: You can deal with that with your
19 attorney. That goes for your attorney, okay. And
20 especially, after a court hearing where you weren't even
21 present, sir, and your attorney relayed back to you certain
22 information. For you to take that information and use it
23 against a professional, who also wasn't at the hearing
24 inappropriate -- absolutely inappropriate. Okay.

25 And to try to paraphrase anything that I've done

1 or to interpret anything I've said on the record to use it
2 against any professional highly inappropriate. Your
3 communication with any professional is going to be
4 strictly, strictly only regarding setting appointments,
5 timing and that's it, nothing else.

6 MR. RUSSELL (Via Telephone): And then everything
7 that went through counsel then goes through you or counsel
8 is permitted to speak to the professional.

9 THE COURT: Counsel knows how to conduct himself.
10 If he feels that there is something that is terribly amiss,
11 he'll know how to approach the Court and I'm sure counsel
12 would never, ever have done that to a professional. Okay.
13 So, Mr. Advocate will know what is proper.

14 MR. RUSSELL (Via Telephone): Your Honor, I
15 understand your Order.

16 THE COURT: Thank you. Yes?

17 MS. ANTONCIC: Just like a couple of housekeeping
18 items that I just remembered.

19 First, with regards to the communication issue,
20 Your Honor, I would ask that only communication with the
21 supervisor all counsel be copied on because there was no
22 directive as to communications with Ms. Farkinson in your
23 Order. And I understand that counsel has been
24 communicating with her, not copying counsel. I'm not
25 raising any objection to it, but just going forward I think

1 everyone should be copied.

2 THE COURT: But it won't be with Ms. Farkinson
3 any more.

4 MS. ANTONCIC: Right.

5 THE COURT: So, what are you suggesting?

6 MS. ANTONCIC: But with the new supervisor.

7 MR. ADVOCATE: But I don't believe that's true.

8 I don't believe -- I had no communication with Ms.
9 Farkinson. You know the one time -- the couple of times I
10 tried to reach her to get the initial meetings going she
11 never responded to me, so that's all.

12 MS. ANTONCIC: Okay, alright, that's fine.

13 MR. ADVOCATE: But he saw those emails and he
14 expected a response and I didn't get a response.

15 MS. ANTONCIC: Okay, alright, so just going
16 forward if we could all be copied.

17 And the other issue, Your Honor, is Dr.
18 Hammelwitz (ph), the Court just signed an Order for a
19 forensic evaluation and my client made an Intake
20 appointment for December 12 and Dr. Hammelwitz indicated
21 that he would only go forward with the appointment if
22 payment was made by Mr. Russell, so I'm just asking him to
23 make payment.

24 MR. ADVOCATE: My client is going to be paying
25 very quickly.

1 MS. ANTONCIC: Okay.

2 MR. ADVOCATE: I just sent him the Order the
3 other day. He wants to move forward with that very
4 quickly.

5 MS. ANTONCIC: Okay.

6 THE COURT: Okay, you sent him the Order that
7 wasn't signed yet?

8 MS. ANTONCIC: No.

9 MR. ADVOCATE: No, I sent him the Order that was
10 signed. That's not correct. You had actually signed the
11 Order for Dr. Hammelwitz.

12 THE COURT: We all did.

13 MR. ADVOCATE: We all signed it.

14 THE COURT: Okay, thanks. So, this Order is for
15 Dr. Griffith?

16 MR. ADVOCATE: Right.

17 THE COURT: Okay, thanks.

18 MR. ADVOCATE: We got the Order for Dr.
19 Hammelwitz and he's contacted him you know today to start
20 discussing moving that forward.

21 THE COURT: Okay, thank you.

22 MR. ADVOCATE: Dr. Hammelwitz might need a
23 retainer agreement from him and then he has to sign it and
24 give the retainer money, and he would do that very quickly.

25 THE COURT: Okay.

1 MR. ADVOCATE: I've got two little, small issues
2 as well, Judge.

3 THE COURT: Okay.

4 MR. ADVOCATE: With respect to the supervisor,
5 I'd like the Court to limit someone -- you know from both
6 parties discussing all the history. We don't need a repeat
7 of what happened to deal with everything.

8 THE COURT: Right, because I don't want any
9 history told to the supervisor. The supervisor is there to
10 just observe --

11 MR. ADVOCATE: Great.

12 THE COURT: -- the visits with baby and the
13 parents, so any discussion of any history not needed, not
14 warranted, and somewhat inappropriate.

15 MR. ADVOCATE: And the very last issue that I
16 just had was when we proceeded with Dr. Hammelwitz next and
17 he's going to go to forensics. One of the psychologist or
18 psychiatrist the parties have seen in San Francisco was a
19 doctor by the name of Dr. Gopal (ph). Dr. Gopal saw both
20 of them and provided some -- you know some medical advice
21 to both of them.

22 This is obviously an important collateral
23 witness. My client has provided Dr. Gopal's with a HIPAA
24 release so that he could speak to the forensic, but I've
25 been advised that Ms. Walsh has not provided the HIPAA and

1 that's going to impede the work of the forensic and we'd
2 like to have that done.

3 MS. ANTONCIC: Your Honor, part of our reply
4 submitted today attached is a complaint to the Medical
5 Review Board as to Dr. Gopal for inappropriate behavior
6 during Ms. Walsh's consultations with him. So, as we have
7 said repeatedly throughout, whatever Dr. Hammelwitz
8 indicates that he needs my client will provide. So, I
9 don't want there to be a presumption that Dr. Gopal is
10 going to be interviewed. If during the course of the
11 forensic evaluation, Dr. Hammelwitz deems that appropriate,
12 my client will then provide whatever authorization is
13 necessary so long as whatever information he receives is
14 confidential and by that I mean for the Court and counsels'
15 eyes only, not to be viewed by the parties. That has
16 always been our position, Your Honor.

17 MR. ADVOCATE: And of course, the (inaudible).

18 THE COURT: (Inaudible) Dr. Gopal, I'm not sure.
19 Is it that you're not signing the release because there's a
20 report he made?

21 MS. ANTONCIC: No, we're not signing the
22 releases, but, sus sponte -- I mean if -- I don't know that
23 Dr. Hammelwitz needs those records.

24 THE COURT: Okay, so that was not coming from Dr.
25 Hammelwitz?

1 MR. ADVOCATE: No, he hasn't, moving forward, but
2 with that understanding from Ms. Antoncic that her client
3 will provide the HIPAA when requested by Dr. Hammelwitz.

4 MS. ANTONCIC: "If" -- "if" requested.

5 MR. ADVOCATE: If requested.

6 MS. ANTONCIC: If requested, "If."

7 MR. ADVOCATE: "If." "If." Of course, the
8 doctor, I'm sure, is going to request it. So, we will --
9 that's fine with us as long as we have it on the record and
10 I appreciate that from Ms. Antoncic.

11 MS. ANTONCIC: And it's confidential -- subject
12 to the confidentiality as well.

13 MR. ADVOCATE: Of course. All medical records
14 are treated with the same confidentiality as a report.

15 THE COURT: Absolutely. Alright, next date,
16 March 7.

17 MS. JACKMAN: That's fine.

18 THE COURT: 10:00 a.m.?

19 MS. ANTONCIC: March 7 at 10:00 a.m. is fine.
20 And this is for a conference?

21 THE COURT: Yes.

22 MS. ANTONCIC: And Your Honor, I assume there's
23 still a decision on the Order.

24 THE COURT: yes, the decision I'll --

25 MS. ANTONCIC: Okay, thank you.

1 THE COURT: Yes, by then you should have the
2 decision.

3 MR. ADVOCATE: What time is the next hearing,
4 Your Honor?

5 THE COURT: 10:00 a.m.

6 MS. ANTONCIC: 10:00 a.m.

7 THE COURT: Mr. Russell, you need to appear on
8 that date, March 7, as it is a long way away, so I sure you
9 can afford to make that trip in, sir.

10 MR. RUSSELL (Via Telephone): Can you (inaudible)
11 up on the last part; what is the date?

12 THE COURT: March 7 at 10:00 o'clock.

13 MR. ADVOCATE: I'll give you the date.

14 THE COURT: Okay, thank you parties.

15 MR. ADVOCATE: Thank you.

16 THE COURT: Okay, parties are excused.

17 MR. RUSSELL (Via telephone): (Inaudible).

18 THE COURT: Your attorney will call you.

19 [PROCEEDING CONCLUDED]

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C E R T I F I C A T E

I, Gloria C. Hooker, certify that the foregoing transcript of proceedings in the Family Court of the State of New York, County of Westchester, in the Matter of Tara Katelyn Walsh vs. Stephen Grant Russell, Docket Numbers O-06917-18/18A, O-06917-18/18C, and V-07641-18, was prepared using the required transcription equipment and is a true and accurate transcript of the recording. Due to the judge's, attorneys', and parties' microphones not working properly, several inaudible segments are contained in the aforementioned transcript and are noted as such.

Signature *Gloria Hooker, CT*
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Date: December 5, 2018